



SPONSOR: Sen. Lockman & Rep. Cooke
Rep. Berry

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 188

AN ACT TO AMEND TITLE 11 OF THE DELAWARE CODE RELATING TO LAW ENFORCEMENT FIREARM
PROCUREMENT.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 1448A, Title 11 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows:

§ 1448A. Background checks for sales of firearms [Effective until implementation of 84 Del. Laws, c. 259, § 1,
pursuant to §§ 5 and 6 of the act].

(e) This section does not apply to any of the following:

(6) Transactions involving a “law-enforcement officer” as defined by § 222 of this ~~title~~-title, which include
transactions by a law-enforcement agency, as defined under § 8584 of this title, for firearms to be used by law-
enforcement officers employed by the law-enforcement agency in the performance of the law-enforcement officers’
official duties.

Section 2. Amend § 1448A, Title 11 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows:

§ 1448A. Background checks and handgun qualified purchaser permit required for sales of firearms [Effective
upon implementation of 84 Del. Laws, c. 259, § 1, pursuant to §§ 5 and 6 of the act].

(e) This section does not apply to any of the following:

(6) Transactions involving a “law-enforcement officer” as defined by § 222 of this ~~title~~-title, which include
transactions by a law-enforcement agency, as defined under § 8584 of this title, for firearms to be used by law-
enforcement officers employed by the law-enforcement agency in the performance of the law-enforcement officers’
official duties.

Section 3. Amend § 1448B, Title 11 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows:

§ 1448B. Background checks for sales of firearms — Unlicensed persons [Effective until implementation of 84
Del. Laws, c. 259, § 1, pursuant to §§ 5 and 6 of the act].

23 (c) This section does not apply to any of the following:

24 (10) Transactions in which the prospective buyer is a law-enforcement agency, as defined under § 8584 of this
25 title, and is obtaining firearms to be used by law-enforcement officers employed by the law-enforcement agency in the
26 performance of the law-enforcement officers' official duties.

27 Section 4. Amend § 1448B, Title 11 of the Delaware Code by making deletions as shown by strike through and
28 insertions as shown by underline as follows:

29 § 1448B. Background checks and handgun qualified purchaser permit required for sales of firearms — Unlicensed
30 persons [Effective upon implementation of 84 Del. Laws, c. 259, § 1, pursuant to §§ 5 and 6 of the act].

31 (c) This section does not apply to any of the following:

32 (10) Transactions in which the prospective buyer is a law-enforcement agency, as defined under § 8584 of this
33 title, and is obtaining firearms to be used by law-enforcement officers employed by the law-enforcement agency in the
34 performance of the law-enforcement officers' official duties.

35 Section 5. Amend § 1448D, Title 11 of the Delaware Code by making deletions as shown by strike through and
36 insertions as shown by underline as follows:

37 § 1448D. Handgun qualified purchaser permit required to purchase handguns [For application of this section,
38 see 84 Del. Laws, c. 259, § 5].

39 (c) (1) A person applying for a handgun qualified purchaser permit as a qualified law-enforcement officer, as
40 a law-enforcement agency, as defined under § 8584 of this title, for a handgun to be used by law-enforcement officers
41 employed by the law-enforcement agency in the performance of the law-enforcement officers' official duties, or a
42 qualified retired law-enforcement officer is not subject to paragraphs (f)(1) or (f)(4) or subsection (h) of this section.

SYNOPSIS

This Act clarifies that the law-enforcement agency practice of purchasing firearms for that agency's law-enforcement officers for use by the officers in their official duties is exempted from the requirements under §§ 1448A, 1448B, and 1448D of Title 11 under our State's permit to purchase firearms laws.

Both the currently effective versions of §§ 1448A and 1448B of Title 11, and the versions of those sections that will become effective upon implementation of 84 Del. Laws, c. 259, § 1 (pursuant to §§ 5 and 6 of the act), are amended by this Act.

Author: Senator Lockman